



Main Store: 7035 E. 96th St., Indianapolis, IN 46250
Annex: 9323 Castlegate Dr., Indianapolis, IN 46256
Email: cbdindy@gmail.com Ph: 317-436-7167

CONSIGNMENT CONTRACT

Account # _____

Receipt # _____ Pmt. Method _____

Consignor Name (must sign back)

Second Authorized Consignor Name (must sign back)

Mailing Address

City State Zip

- * Furniture & Other large items must be preapproved by email.
- * One-Time \$25 Account Registration Fee.
- * Pricing request(s) must occur during intake.
- * 120-day Consignment Period with markdowns.
- * Shorter Consignment Period for holiday items.
- * Items become CBD property at expiration.
- * Cross-Posting /Selling is not permitted.
- * We will not contact you for account activity/reminders.
- * Twenty-five percent (25%) of original price is charged for reclaim during 120 days of consignment.
- * Checks must be picked up & cashed with 180 days of issue/expiration. Expired checks will not be reissued.
- * PAYMENT: I would like to maintain cash on account. _____
I will pick up my check(s) at the store. _____
I would like my check(s) mailed (out of state). _____

Consignor Initials

Staff initials _____

Copy Given to
to Consignor

Pink ½ Sheet
to Consignor

Welcome Letter
Email Sent

Primary Phone _____

Email Address _____ Staff Reprint _____

1. **PARTIES:** This contract is between Consigned by Design (hereafter referred to as CBD”) and the above-named person(s), (hereafter referred to as “Consignor”). If the account and/or check requires more than one name, all parties must sign this contract. Any party may consign items for Consignor, and by their signature acts as Consignor’s representative. Consignor must provide CBD with authorization to release a check, property, or information to someone other than Consignor. Consignor agrees to keep account information current. Store Credit may be used only by Consignor.
2. **TERM:** This contract is indefinite; however, CBD reserves the right to deactivate account, end the contractual relationship established by this contract and cease to provide any and all services of this contract at any time and for any reason, with or without notification to Consignor. Consignor may, at any time and for any reason, cease to consign and reclaim eligible items. (See paragraph 15)
3. **CONSIGNOR’S RIGHT TO SELL:** Intake is scheduled by appointment only; available to book online. Furniture and other large items must be preapproved via an email that includes photos and item details. An unlimited number of items may be consigned by Consignor, if they (a) legally belong to Consignor or Consignor has the legal right to sell items, and (b) are approved by CBD as appropriate and immediately ready for sale at intake. Item(s) must be clean, of good quality, odor free (smoke, pet, mildew, etc.), and in excellent condition. A fee may be assessed and deducted from Consignor’s portion of the proceeds on any item that is not in “ready to sell” condition.
4. **CBD’S RIGHT TO SELL:** CBD may sell any item received in intake following Consignor’s signature on the Intake sheet. Consignor must inform CBD, at the time of intake, of any specifics related to the item(s) as previously discussed with another representative of CBD, or any Consignor expectations (e.g. value, pricing, damage [previous, existing, or repaired] care and display). CBD reserves the right to adjust and verify brands, prices, etc. without Consignor’s prior approval.

5. **EXCLUSIVITY OF MARKETING & SALE:** CBD holds the exclusive rights for marketing and sale of the item(s) Consignor consigns. Consignor may not cross-post or conduct simultaneous, private or marketed sale of any items brought into CBD, while they are under CBD contract, or as they are being reclaimed and removed from CBD. CBD photos of items and marketing materials featuring Consignor's item(s) are the sole property of CBD, used exclusively by CBD to market said item(s) for Consignor. Consignor may not use CBD's business premises, photos, website, website inventory links, marketing materials, social media postings, store, or store parking lot to conduct his/her own sales effort for any item(s) or service(s). CBD reserves the right to seek commission on unauthorized sales.
6. **CONSIGNMENT PERIOD:** The Consignment Period is assigned to items based on the date they are entered into Consignor's account, known as "received date," which may not match the intake date. Standard items are assigned a 120-day Consignment Period; holiday and/or some seasonal items are assigned a shorter Consignment Period and require Consignor pick up earlier than the expiration date posted in the inventory system and on any report or e-mail listing the item. Items may remain on the floor beyond the Consignment Period, tagged under Consignor's account, but belong to CBD and may not yield payment to Consignor, if sold. One hundred and twenty (120) days may not be the same as four months. It is the Consignor's responsibility to be aware of the Consignment Period. The expiration date in the item record is the first day the item is CBD property. The consignor must pick up the item(s) from five days before that date and has a seven-day grace period after the date. CBD will not safeguard items from expiring.
7. **CBD'S RIGHT TO REJECT:** CBD reserves the right to reject any item(s) at any time for any reason. This includes items tagged and placed on the floor then removed after further consideration by CBD. Items rejected after intake, including those initially tagged but then rejected after further consideration or tagged and then removed from the floor due to failing condition will be held for a limited period for pick up. Consignor will be notified of rejection. Items not picked up within two weeks of notification are deemed abandoned, and CBD has the right to dispose of them. Restrictions of otherwise-acceptable items may be periodically and temporarily imposed based on current inventory and/or space.
8. **PRICING:** Pricing is set by CBD. Every effort will be made to fairly and profitably price consigned item(s). CBD is not a certified appraiser. Consignor's signature at time of intake authorizes CBD to group, price, display, market and sell items without further consultation with, or approval of Consignor. Any specificity about an item, including price, must be shared with intake staff beforehand. Resale prices of consigned item(s) will be determined with respect to various factors including, but not limited to resale standards, age, brand, condition, quality, trend, style, and saturation of like item(s). Specific net price desired by Consignor for an item must be indicated by Consignor at time of intake. If CBD cannot agree to Consignor's requested price, the item will be rejected. If Consignor does not specifically stipulate desired net price at the time of intake, Consignor accepts CBD pricing. Reclaim of item(s) by Consignor due to unacceptable price, where price was not clearly stipulated during intake may be assessed an early-reclaim fee (see paragraph 15).
9. **MARKDOWN SCHEDULE:** Item(s) reduce 20% in price of previous price every 30 days. This schedule has the potential for three markdowns. By agreeing to original pricing, Consignor agrees to this schedule and pricing.
10. **MARKETING, DISPLAY, & SALES EFFORT:** CBD will make every effort to display Consignor's item(s) in an appropriate, equitable, and reasonable manner. Consigned item(s) may or may not be photographed, included on the CBD's website or on social media, in print or marketing materials, or specially featured on the sales floor.
11. **SALES SPLIT:** Upon opening an account, with a one-time \$25 Account Registration fee, the Consignor account will be credited 50% of the actual selling price of Consignor's item(s) less fees, taxes and Buyer's Premium. Consignor is credited only for the sale of his/her item(s), if sold within their consignment period. Consignor will receive no funds if the item is lost, damaged, stolen, expired, abandoned, or otherwise dispositioned by CBD. A Buyer's Premium will be systematically added to the price of each item, reflected on the sales tag, and passed on to the buyer. **You are not charged this fee and it does not affect your portion of the base sale price.** The fee is added to the price of the item to cover credit card fees, ecommerce processing fees, online advertising and social media marketing.
12. **STORE CREDIT & CONSIGNOR PAYMENT:** Funds accumulate on Consignor's account as "Store Credit." Store Credit does not expire and may be held on the account indefinitely in lieu of payout by check. Balances less than \$25 will be carried forward until the total reaches or exceeds \$25 for a check to be issued or Consignor uses balance as store credit. Store Credit payable by check may be unavailable for up to three (3) days prior to check release. Consignor checks (\$25 minimum) are printed monthly for funds from net sales activity in the prior calendar month less any Store Credit used or any other deduction/reduction that occurred since the previous payout and released on the 15th of the month of issue. Checks must be picked up at the store unless Consignor is an out-of-state resident, in which case checks are mailed. Checks not picked up/cashed within 180 days of issue date will be forfeited by Consignor and will not be reissued. One hundred and eighty (180) days may not be the same as six months. Consignor agrees to payment method noted on the front of this contract. Changes to payment method must be made in writing. A \$35 stop payment fee will be charged for lost, destroyed or stolen checks.

13. **PROPERTY OWNERSHIP:** Consignor remains owner of his/her item(s) throughout their Consignment Period. Ownership transfers to buyer at time of sale. Property not reclaimed before the consignment period is “expired” (e.g. donated or abandoned) and becomes property of CBD, and CBD may attempt to resell, dispose, or donate item(s). Any gain, including donation receipts belongs to CBD free and clear. While all reasonable efforts will be made to keep consigned items clean and safe from damage, CBD is not responsible for LOSS or DAMAGE to consigned articles from fire, water, theft, damages or other casualty. Please ensure that all items are covered under your homeowner’s insurance policy or such other insurance as you deem appropriate.
14. **PROPERTY RECLAIM:** The standard consignment of 120-days (not necessarily four months) begins on the received date as entered in the inventory system (which may follow the intake date) and ends the day before the system expiration date. Consignor may reclaim item(s) at will, with the understanding that (a) Consignor has the affirmative duty to visit the store to reclaim, (b) CBD will not gather item(s) for reclaim, (c) item(s) intended for reclaim will remain on display, and on our website or social medial for sale until Consignor physically reclaims, (d) a Reclaim Fee of 25% of the original price will be charged to Consignor for any processed item being reclaimed within its first 120 days of consignment; and, any processed seasonal/holiday item(s) that may have been post-dated, unless seasonal/holiday item(s) term requires early pickup, (e) reclaim fees must be paid at the time of pickup, and (f) some reclaims may require advance notice.
15. **CONSIGNOR Login:** CBD provides online account access to the Consignor Login on our website that allows you to track the status of your item(s), view pricing, commissions, payouts, and pickup dates. Once your account is created, you will receive a link to your online Consignor Login. You are responsible for monitoring all items that you place on consignment at CBD. Please monitor your online Consignor Login on a regular basis at www.consignedbydesign.com.
16. **CONSIGNOR OBLIGATIONS & PROACTIVITY:** Consignor must keep his/her account information current. CBD shall be held harmless for failed method of contact information, i.e., name, address, e-mail address, and/or phone number. CBD will not issue donation receipts or earnings documents for tax purposes. CBD will not contact Consignor with regards to account matters, inventory disposition or status (e.g. item is on hold, has marked down, has sold, is near expiration, or has expired), or whether Consignor has a check or if a check is near expiration. If CBD initiates legal proceedings to collect funds due CBD from Consignor, CBD shall be entitled to costs of collection, including attorney’s fees.
17. **BUSINESS PRACTICE:** Consignor agrees to accept and support all CBD policies, procedures, practices, and store operations (including, but not limited to, store sales, seasonal guidelines, regular and modified hours of operation, weather-related closures, emergency closures, technical difficulties, and Consignment Period days lost due to modified hours, closure, or technical difficulties).
18. **CBD’S RIGHT TO APPEND/REVISE CONTRACT:** This contract may be appended and or revised at any time by CBD. This contract’s terms and conditions shall be applied to any item(s) accepted prior to any revisions. CBD may require Consignor to execute an updated contract and/or addendum to continue the relationship established by this contract.

Consignor, by signature below, affirms that he/she has read this contract, and understands, agrees to, and will comply with all its conditions.

Consignor Signature	Date
Second Authorized Consignor Signature	Date

STAFF INITIALS:

Explained/Executed Contract _____

Collected, Rang & Deposited Fee _____

Added Account in Liberty _____

Admin/Accounting/Trans.List/File _____

Last Updated: June 2024